

Museums continue to make third-party licensing for academic scholarship a total pain

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Museums continue to make life miserable for academic scholars who wish to re-use their images in third-party publications. I am not against paying museums license fees for images they have digitized, although I believe that Simon Tanner has shown that the overheads of running a licensing department can outweigh the actual revenue, against footfall/exposure etc. But I do not understand why museums cannot drag their sorry licensing processes into the 21st century.

This particular outburst was prompted by recent discussions to which I was privy with a museum that will remain nameless (it was the V&A). We could get image licenses for an open-access, digital-only journal article, under the following conditions:

1. That any HTML version ‘disable right click’ and ‘prevent download of the image’;
2. That the PDF version would be licensed for a five-year period.

I cannot say how misguided both of these points are. On the first, well, to even *view* an image, your browser has to ‘download’ it, so in technical terms this is nonsense. However, alright, what they really want is to prevent download and saving of the image to a specific location. They want to achieve this by blocking right click in the browser. This is hideous and so easy to circumvent that it

isn't true. It won't deter anyone with any basic degree of competence from leeching the image (seriously – just view source on the page and get the image address) but will greatly inconvenience genuine users. It might even have accessibility implications for screenreaders and other assistive software. It also assumes that we can easily modify our *entire platform* so that this single article can have right click disabled. What planet is this policy from and how do we travel back in time, away from this horrible virus, to get there?

The second stipulation is also totally ridiculous. The scholarly record must remain immutable if our chains of epistemic validation – following Anthony Grafton – are to be maintained through citation. They seriously wanted us to pay for a five-year term and then to pull the material offline, thereby wrecking the scholarly record on this subject.

I think we have this sorted now – albeit at great expense – but it is SO frustrating to want to draw scholarly attention to the work of museums, only to have the museums put up stipulations that utterly deter us from wanting, ever, to use their collections again. I know that some museums have done good things in this space and do not put up such barriers, but other museums are definitely scoring a 'must do better' on their report card from me at the moment.

Photo by [Brett Jordan on Unsplash](#).